

Tentative Rulings for Department 502

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Tentative Ruling

Re: ***Patricia F. v. Westcare California, Inc.***
Superior Court Case No. 24CECG00632

Hearing Date: September 24, 2026 (Dept. 502)

Motion: by Plaintiff for an Order to Depose an Incarcerated Party

Tentative Ruling:

To grant plaintiff's motion for an order to depose Matthew Ladel Lamb, incarcerated at California State Prison, Sacramento.

Explanation:

Plaintiff Patricia F. ("plaintiff") moves for an order pursuant to Code of Civil Procedure section 1995 and Penal Code section 2623 to depose Matthew Ladel Lamb, incarcerated at California State Prison, Sacramento. The motion is unopposed.

A prisoner confined to prison may be deposed. (Code Civ. Proc., § 1995; Pen. Code, § 2623.) To take a prisoner's deposition, counsel must obtain an order from the court in which the matter is pending, unless the matter is pending in small claims court, in which case an order must be obtained from the superior court. (Code Civ. Proc., § 1995; Pen. Code, § 2623.) The motion must be accompanied by a declaration showing the nature of the action or proceeding, the subject of the testimony, and its materiality to the action. (Code Civ. Proc., § 1996; Pen. Code, § 2623.) The deposition in state prison proceeds under Penal Code section 2622.

Plaintiff's motion complies with the requirements of Penal Code sections 2622-2623, and is accordingly granted.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

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(Judge's initials) (Date)